



U.S. Department
of Transportation

Research and
Special Programs
Administration

APR 17 1996

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT E-11021
SECOND REVISION

EXPIRATION DATE: June 30, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. **GRANTEE:** Union Pacific Railroad Company
Omaha, Nebraska.
2. **PURPOSE AND LIMITATION:** This exemption authorizes the transportation in commerce of bulk shipments of methane, refrigerated liquid in DOT Specification 113C120W and 113C60W tank cars and provides no relief from any regulations other than as specifically stated.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR 172.101 Table.
5. **BASIS.** This exemption is based on Union Pacific Railroad Company's application of June 13, 1995, submitted in accordance with 49 CFR 107.105.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description/proper shipping name	Hazard class or division	Identification number	Packing group
Methane, refrigerated liquid	2.1	UN 1972	N/A

7. **PACKAGING(S) and SAFETY CONTROL MEASURES:**
 - a. **PACKAGING** - Packaging prescribed are DOT Specification 113C120W and 113C60W tank cars meeting all DOT packaging requirements (49 CFR Parts 100-199). Reporting marks for tank cars operating under this exemption must be on file with the Office of Hazardous Materials Exemptions and Approvals prior to shipment.

- b. **MARKING** - Tank cars must be marked "DOT-E 11021" in four inch letters and numerals on a contrasting background above the DOT specification number.
- c. **TESTING** - Tank cars must be tested in accordance with §179.400-18 at the time of construction. The retest interval for the safety relief valve shall be five years and the rupture disk shall be replaced at least every six months.
- d. Shipping papers for shipments made under this exemption must bear the notation "DOT-113C - Do Not Hump or Cut Off Car While in Motion."
- e. Each facility at which tank cars operating under the terms of this exemption are unloaded must have written safety procedures on file and immediately available to unloading personnel. The facility operator shall instruct each employee performing any function under this exemption on the contents of these procedures and ensure compliance with them. The written procedures must contain at least the following:
 - (i) A physical description of the facility including the address and hours of operation.
 - (ii) A drawing of the transfer facility showing natural and manmade barriers, locations of protective equipment (i.e. derail and caution sign), locations of emergency equipment and locations of signalling equipment.
 - (iii) Procedures for monitoring the transfer facility [see paragraphs 7(a) and (b)].
 - (iv) Information on the contents of the tank car including:
 - (a) chemical or common name of the product
 - (b) health and physical hazards involved in handling the product
 - (c) emergency and first aid procedures

- (v) Procedures for securing the transfer facility and protective equipment including derail, switch locks, tank car brakes, caution sign and wheel blocks.
- (vi) Equipment available for employee safety and procedures for using the equipment.
- (vii) Procedures and limitations for movement of tank cars in the vicinity of the transfer facility.
- (viii) Testing and maintenance of system components including signalling systems.
- (ix) Training requirements for designated employees responsible for monitoring the transfer facility.
- (x) Procedural steps in the event of an emergency, including names and phone numbers of key personnel and public agencies to contact.
- (xi) Procedures for reviewing incidents to determine whether the written procedures require revision or modification to prevent future occurrences and amending those procedures when the review necessitates changes.

8. SPECIAL PROVISIONS.

- a. The provisions of 49 CFR 173.319 apply to tank cars transported under this exemption.
- b. Transportation routes for shipments made under this exemption must be approved by the Associate Administrator for Safety, Federal Railroad Administration (FRA), prior to movement.
- c. Additional tank cars may be authorized for transportation under the terms of this exemption provided that prior approval is granted by the Associate Administrator for Safety, FRA.

- d. Persons who receive packages covered by this exemption may re-offer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such re-offering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS: No modal-specific requirement are required by this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation laws (49 U.S.C. 5101 et seq.):

- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

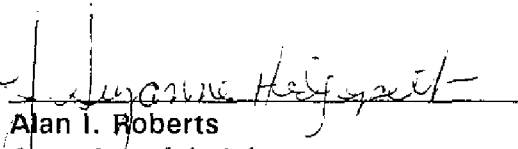
12. REPORTING REQUIREMENTS.

- a. The Federal Railroad Administration is to be notified if any unusual incident such as derailment or exterior tank car damage occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

- b. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 17 1996

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety,
Research and Special Programs Administration, Department of Transportation,
Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions
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